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ForumIAS

 (Don't Write
anything in this Area)

b) Recently, the Khasi Hill Autonomous District Council in Meghalaya has proposed a bill to replace inheritance pattern in the "matrilineal tribe" with "patrilineal system" Critically analyse this proposed legislation & its viability. (15 Marks)

The Khasi tribe of Meghalaya are a matrilineal society and they trace their descent and inheritance from the mother's side.

→ In Khasi tribe, the ancestral property is inherited by the youngest daughter of the family and she becomes the custodian of the land and takes all the responsibility of her family such as

- looking after her aged parents
- to take care of the younger siblings
- and look after the agricultural production system.

* But Recently, the District Council in Khasi has proposed a bill to replace the matrilineal inheritance pattern with

patrilineal system.

* The arguments put forward in District Council

- It leads to unequitable property distribution among the children of Khasis
- This system discriminates men and is biased against the Khasi men
- Many a times, the male members of the Khasi family are not able to access loans as they lack collateral.
- When a couple has no girl child, ~~the~~ they lack a legal heir, the clan takes over the property and it leads to litigations by children against their parents
- To codify and make provisions for regulation and administration in the inheritance